fraud,[9] or in the orderly process of a court's procedure.[10] From these decisions, it follows necessarily that the Amendment is violated by the officer's reading the paper without a physical seizure, without his even touching it; and that use, in any criminal proceeding, of the contents of the paper so examined—as where they are testified to by a federal officer who thus saw the document or where, through knowledge so obtained, a copy has been procured elsewhere[11]—any such use constitutes a violation of the Fifth Amendment.

The protection guaranteed by the Amendments is much broader in scope. The makers of our Constitution undertook to secure conditions favorable to the pursuit of happiness. They recognized the significance of man's spiritual nature, of his feelings and of his intellect. They knew that only a part of the pain, pleasure and satisfactions of life are to be found in material things. They sought to protect Americans in their beliefs, their thoughts, their emotions and their sensations. They conferred, as against the Government, the right to be let alone—the most comprehensive of rights and the right most valued by civilized men. To protect that right, every unjustifiable intrusion by the Government upon the privacy of the individual, whatever the means employed, must be deemed a violation of the Fourth Amendment. And the use, as evidence

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[9] *Gouled* v. *United States,* 255 U. S. 298.

[10] *Boyd* v. *United States,* 116 U. S. 616; *Hale* v. *Henkel,* 201 U. S. 43, 70. See *Gouled* v. *United States,* 255 U. S. 298; *Byars* v. *United States,* 273 U S. 28; *Marron* v. *United States,* 275 U. S. 192.

[11] *Silverthorne Lumber Co.* v. *United States,* 251 U. S. 385. Compare *Gouled* v. *United States,* 255 U. S. 298, 307. In *Stroud* v. *United States,* 251 U. S. 15, and *Hester* v. *United States,* 265 U. S. 57, the letter and articles admitted were not obtained by unlawful search and seizure. They were voluntary dislosures by the defendant. Compare *Smith* v. *United States,* 2 F. (2d) 715; *United States* v. *Lee,* 274 U. S. 559.